



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CR-01

FILED BY LAW ENFORCEMENT
REV. 08/2026

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR CLEARWATER COUNTY

ARREST AFFIDAVIT AND PROBABLE CAUSE STATEMENT

Sworn statement of the arresting officer - required for every custodial arrest

THE STATE OF FLORIDA THE STATE OF FLORIDA VS. DEFENDANT Full name of party	CASE NUMBER (UCN) Format: 26-CF-000123 (YY - TYPE - NUMBER) DIVISION JUDGE / HEARING OFFICER CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims
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HOW TO USE THIS FORM

The arresting officer completes every section. Write the narrative in your own words, in order, explaining what you saw and why you believed a crime occurred. A judge must review and sign the last page within 24 hours or the defendant is released. Attach the charge sheet (CR-03) if the State files formal charges.

ARREST AND AGENCY INFORMATION

ARRESTING AGENCY 	OFFICER NAME AND RANK 	BADGE / ID NO.
DATE OF ARREST MM/DD/YY	TIME OF ARREST HH:MM	LOCATION OF ARREST
INCIDENT / CAD NO. 		
ASSISTING OFFICER(S) 	BODY CAMERA ACTIVE 	BOOKING NO.

DEFENDANT INFORMATION

LAST NAME 	FIRST NAME 	USERNAME
CONTACT HANDLE 	CITIZEN ID NO. 	DRIVER LICENSE NO.
AGE 	RESIDENCE / DISTRICT 	OCCUPATION / EMPLOYER
PHYSICAL DESCRIPTION 		

CHARGES

Use the Clearwater County Charge and Penalty Code

#	STATUTE / CODE	OFFENSE DESCRIPTION	DEGREE	BOND

PROBABLE CAUSE NARRATIVE

STATE THE FACTS ESTABLISHING PROBABLE CAUSE. WHO, WHAT, WHERE, WHEN, HOW. Continue on CR-01A if needed

EVIDENCE AND PROPERTY SEIZED

ITEM NO.	DESCRIPTION	WHERE FOUND	DISPOSITION

WITNESSES

NAME	ROLE (VICTIM / WITNESS / OFFICER)	CONTACT

RIGHTS AND BOOKING ADVISORY

- ☐ Miranda warning read to defendant

☐ Defendant invoked right to remain silent

☐ Defendant provided a statement

☐ Search warrant obtained (attach CR-05)

☐ EMS clearance obtained
- ☐ Defendant acknowledged understanding

☐ Defendant requested an attorney

☐ Search conducted incident to arrest

☐ Vehicle towed / impounded

☐ Property receipt issued to defendant

Under penalty of perjury, I swear that the foregoing statement is true and correct to the best of my knowledge and belief, and that the facts stated establish probable cause to believe the named defendant committed the offense(s) charged.

SIGNATURES

AFFIANT / ARRESTING OFFICER
Signature of officer swearing to this affidavit

PRINTED NAME

DATE

SUPERVISOR APPROVAL
Sergeant or above

PRINTED NAME

DATE

JUDICIAL PROBABLE CAUSE DETERMINATION

To be completed by a judge or magistrate. Review the affidavit above and select one finding. This section must be completed within 24 hours of the arrest.

FINDING OF THE COURT

☐ **PROBABLE CAUSE FOUND**
The affidavit establishes probable cause for the offense(s) charged. The defendant shall be held for first appearance.

☐ **PROBABLE CAUSE FOUND AS TO SOME COUNTS ONLY**
Probable cause exists for the counts listed below. All other counts are dismissed without prejudice.

☐ **NO PROBABLE CAUSE - DEFENDANT RELEASED**
The affidavit does not establish probable cause. The defendant shall be released immediately.

☐ **AFFIDAVIT INSUFFICIENT - SUPPLEMENT REQUIRED**
The affiant shall file a supplemental affidavit within the time stated below.

COUNTS FOUND / DISMISSED

SUPPLEMENT DUE BY

BOND SET AT

JUDICIAL FINDINGS AND COMMENTS

FINDINGS, CONDITIONS, OR INSTRUCTIONS TO COUNSEL

JUDGE / MAGISTRATE
Sixth Judicial Circuit

PRINTED NAME

DATE

This affidavit is a sworn document. Every fact stated must be within the affiant's personal knowledge or attributed to a source the affiant reasonably believes reliable. Overstating what was observed is the single most common reason an arrest is thrown out at the probable cause stage.